

SENATE No. 923

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to college in high school.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/28/2025</i>

SENATE No. 923

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 923) of Brendan P. Crighton and Manny Cruz for legislation relative to college credits while attending high school. Higher Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 818 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to college in high school.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9B of chapter 15A, as appearing in the 2022 Official Edition, is
2 amended by adding the following after the word “commonwealth” in line 6: “or any college in
3 high school program administered pursuant to section 37 of chapter 69.”

4 SECTION 2. Section 16 of chapter 15A is amended by adding the following after the
5 word “nursing” in line 5: “or any college in high school program administered pursuant to
6 section 37 of chapter 69,”

7 SECTION 3. Chapter 15A of the General Laws is hereby amended by inserting after
8 section 39 the following section:-

Section 39A. (a) All public institutions of higher education shall develop written policies and procedures for accepting for the purposes of course credit to satisfy degree requirements certain scores on the College Board's advanced placement examinations, successful completion of college in high school courses as provided in section 37 of chapter 69, successful completion of the International Baccalaureate Diploma Program, or and successful completion of dual enrollment courses. In the said policy, the institution shall:

(1) establish its conditions for granting course credit, including the minimum required scores on Advanced Placement examinations and examinations for courses constituting the International Baccalaureate Diploma Program; and

(2) establish whether credit will be granted for general education, major or elective requirements at the institution; and

(3) include procedures related to the transferability of these credits to another institution of higher education.

(b) On request of an applicant for admission as an entering student, a public institution of higher education, based on information provided by the applicant, shall determine and notify the applicant regarding:

(1) the amount and type of any course credit that would be granted to the applicant under the policy required in subsection (a); and

(2) any other academic requirement that the applicant would satisfy under the policy.

(c) All policies and procedures governing the award of credit shall be posted on the institution's website under the category of admission, which the institution shall update as

necessary to reflect any changes in policies and procedures. In addition, each institution shall submit its policies and procedures, or any changes thereto, to the department of higher education which shall post each institution's policies and procedures on the department's website.

(d) The board of higher education, in cooperation with the board of trustees of each public institution including the University of Massachusetts, shall annually review the college in high school course-granting policies of each public institution of higher education in accordance with the requirements of this section and file a report with its findings and any recommendations with the clerks of the senate and the house of representatives and chairs of the joint committee on higher education not later than July 1. Each public institution of higher education shall provide the board of higher education with all necessary data, in accordance with the federal Family Educational Rights and Privacy Act of 1974, to conduct the analysis.

SECTION 4. Chapter 29 of the General Law is hereby amended by inserting after section 2CCCCC the following new section:-

Section 2DDDDD. (a) There shall be established and set up on the books of the commonwealth a separate fund to be known as the Massachusetts College in High School Trust Fund. The fund shall be administered by the commissioner of the department of elementary and secondary education, in consultation with the commissioner of the department of higher education. The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) interest earned on such revenues; and (iii) funds from public and private sources such as gifts, grants, and donations to further the rates of student preparedness for workforce and postgraduate success.

Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(b) Amounts credited to the fund may focus on underserved communities across the Commonwealth, including those school districts with high concentrations of economically disadvantaged students.

(c) Amounts received from private sources shall be approved by the commissioner of elementary and secondary education and subject to review before being deposited in the fund to ensure that pledged funds are not accompanied by conditions, explicit or implicit, on the implementation of college in high school programming that may be detrimental to the neutral education policy. The review shall be made publicly available.

(d) Annually, not later than October 1, the commissioner shall report to the clerks of the house of representatives and senate, the joint committee on education, the joint committee on higher education, and the house and senate committees on ways and means on the fund's activity. The report shall include, but not be limited to: (i) the source and amount of funds received; (ii) the amounts distributed and the purpose of expenditures from the fund, including but not limited to, funds expended to assist school districts in meeting the requirements in section 37 of chapter 69; (iii) any grants provided to institutions of higher education and other stakeholder organizations; and (iv) anticipated revenue and expenditure projections for the next year.

SECTION 5. Chapter 69 of the General Laws is hereby amended by inserting after section 36 the following two sections:-

Section 37. (a) There shall be a Massachusetts Office of College in High School, herein the office. The office shall be overseen by the commissioner of the department of elementary and

secondary education in consultation with the commissioner of the department of higher education. The office will administer high school programs that expand student access to college and postsecondary opportunities through high-quality instructional programming, hereinafter referred to as college in high school, in order to increase the rates of student success in postsecondary attainment and in the workforce. All programs established under this section shall:

(1) Offer a coherent sequence of courses that allows a student to earn a high school diploma and achieve at least one of the following:

(i) the accumulation of transferable college credits; provided that, academic courses that count for college credit shall be those agreed to by the institutions of higher education participating in the partnership with the high school,

(ii) an industry-recognized credential or certificate, including those determined to be necessary for occupations with high employment value as defined in section 38 of this chapter; or

(iii) participation in a registered apprenticeship, pre-apprenticeship, or apprentice readiness program;

(2) Prepare students adequately for future success in the workforce or in an institution of higher education;

(3) Encourage the cooperative or shared use of resources, personnel and facilities between public high schools, public and independent colleges or universities and employers;

(4) Emphasize parental involvement and provide consistent counseling, advising and parent conferencing so that parents and students can make responsible decisions regarding course selection and can track the student's academic progress and success;

(5) Develop methods for early identification of potential participating students in the middle grades and through high school and provide outreach to those students to promote academic preparation and awareness of college in high school programs; and

(6) Develop strategies to identify and engage underserved populations including by income, race, ethnicity, sex, English language learner status and students with disabilities.

(b) The office shall oversee all necessary college in high school programs, including but not limited to programs that incorporate one or more of the following: (1) early college; (2) dual enrollment; (3) industry-recognized credentialing in high school, including those for credentials determined to be necessary for occupations with high employment value as defined in section 38 of this chapter; (4) advanced placement; (5) international baccalaureate programs; or (6) other approaches for college and career programs. The office shall develop and, as needed, refine all college in high school program designations offered in the Commonwealth and shall have the authority to set and raise credit attainment targets, recommend any designations to be awarded to applicants, administer all aspects of state support for the programs, track and report on the performance of participants in the aggregate and identify and pursue further innovative approaches. Academic courses that count for college credit shall be those agreed to by the institutions of higher education participating in any partnership with the high school.

(c) Pursuant to regulations to be promulgated by the board, all high schools shall offer an affordable college in high school program to students before the completion of their 12th grade

year that incorporates one or more of the following: (1) early college; (2) dual enrollment; (3) industry-recognized credentialing in high school; (4) advanced placement courses; (5) international baccalaureate programs; or (6) other approaches for college and career programs.

(d) There shall be a College in High School Joint Committee, hereinafter the CIHS Joint Committee, charged with governing and overseeing the work of the office and making recommendations to the board of elementary and secondary education and the board of higher education. The CIHS Joint Committee shall develop recommendations that include but are not limited to the following: (1) helping drive the commonwealth's efforts to grow and expand college in high school programs; (2) assisting the office in establishing and monitoring robust performance requirements and targeted enrollments for all participating programs statewide and (3) aiding the office in identifying and certifying new college in high school programs. The CIHS Joint Committee shall consist of the secretary of the executive office of education or a designee; the commissioner of the department of elementary and secondary education or designee; the commissioner of the department of higher education or designee; two members of the board of elementary and secondary education, who shall be appointed by the chair of the board of elementary and secondary education; and two members of the board of higher education, who shall be appointed by the chair of the board of higher education.

(e) The office shall create and annually review a set of per-credit charges that the public and private institutions of higher education participating in a designated college in high school program require for providing credit-earning courses. The per-credit charge may be subject to factors, including but not limited to: (1) the segment of colleges offering certain courses; (2) the site where the course is taught; (3) whether the course has extra costs associated with enrollment and (4) whether there are minimum numbers of participating students per section offered.

(f) The office may develop, subject to the approval of the CIHS Joint Committee, recommendations for college in high school programs to continue to enroll participating students to extend and expand their graduation requirements such that they may continue to be considered students of the high school for purposes of chapter 70 calculations for up to two more years in order to complete certificates, degrees or up to two years of transferable credit to a four-year college.

(g) The office shall propose a budget to the commissioner of the department of elementary and secondary education that reflects the goals and objectives of the office.

(h) The college in high school programs shall be open to all enrolled students, on a space available basis, and shall not discriminate on the basis of race, color, national origin, creed, sex, gender identity, ethnicity, sexual orientation, mental or physical disability, age, ancestry, special needs, proficiency in the English language or academic achievement. A lottery shall be held if more students apply than can be accommodated.

(i) The office shall establish the information and requirements it deems necessary to be included in any application for designation as a college in high school program in order to ensure a high-quality and rigorous college in high school program. The office, after consultation with the department of higher education, shall establish standards for approving and designating college in high school programs.

(j) Where required, each designated college in high school program shall enter into an agreement with at least one postsecondary institution that provides students with opportunities to receive postsecondary credits during the student's participation in the program. Partner high schools and colleges shall work together to ensure that college credits automatically transfer to

159 Massachusetts public postsecondary institutions upon completion of the program and admittance
160 to one of those public institutions. In addition, partnering high schools and colleges should
161 reduce barriers to college and consider automatic admission to the participating college upon
162 successful completion of the college in high school program. The agreement shall establish how
163 the program will be sustainable on current funding plus any anticipated annual state supplement
164 for designated college in high school programs as well as the designated duties for the high
165 school, in the areas of program coordination, student support, faculty support, career partnership
166 coordination and performance monitoring.

167 (k) Designation as a college in high school program shall be for an initial period of five
168 years, subject to review after the first three years, and renewable subject to performance. The
169 department of elementary and secondary education shall, subject to appropriation, provide
170 additional funding to designated programs for each participating student.

171 (l) Annually, by December 31, each college in high school program shall file a report
172 with the commissioner of the department of elementary and secondary education and the
173 commissioner of higher education, on performance measures, including, but not limited to the
174 following categories:

175 (i) high school graduation rates of participating students;

176 (ii) percentage of participating students who complete the program;

177 (iii) percentage of participating students who gain any postsecondary credits;

178 (iv) credits earned by participating students in college in high school programs, including
179 the percentage of each program incorporating early college to gain at least 12 credits;

(v) percentage of participating students in a 6-year cohort who attain postsecondary degrees; and

(vi) college and career outcomes of participating students.

The commissioners shall prepare an aggregate report for the senate and house chairs of the joint committee on higher education, and the joint committee on education.

(m) The office shall propose, subject to approval by the CIHS Joint Committee and the boards of elementary and secondary education and higher education, multi-year goals for the commonwealth for the attainment of college degrees and qualifying, industry-recognized certificates for students participating in college in high school programs. Such goals shall include overall goals as well as goals for historically underserved populations including by income, race, ethnicity, sex, English language learner status and students with disabilities. Goals should include statewide-, district-, and school-level goals. The office shall be responsible for ensuring annual, timely public reporting of progress statewide and by district and school towards those goals.

(n) The office shall establish a publicly accessible online dashboard using data from the reports filed pursuant to subsections (g) and (h) of the section to generate information on each college in high school program. The purpose of the dashboard shall be to create user-friendly displays of the overall success of the individual programs in achieving the goals and shall be written in terms understandable to the general public and to help students and their families identify available college in high school opportunities.

SECTION 6. Chapter 71 of the General Laws is hereby amended by adding the following section:-

202 Section 98. All public high school students shall complete and submit a free application
203 for federal student aid or an application with the Massachusetts Educational Financing Authority.
204 The Massachusetts Office of College in High School, established in section 37 of chapter 69,
205 shall promulgate regulations and provide guidelines for implementation of this subsection,
206 subject to the approval of the board of elementary and secondary education. A student is not
207 required to comply with this section if: (1) the student's parent or legal guardian submits a signed
208 form indicating that the parent or legal guardian authorizes the student to decline to complete and
209 submit the financial aid application; or (2) the student signs and submits a form on the student's
210 own behalf if the student is 18 years of age or older.

211 SECTION 7. The commissioner may expend funds from the Twenty-First Century
212 Education Trust Fund established in section 35NNN of chapter 10 for college in high school
213 programs.

214 SECTION 8. The first annual report required under section 38 of chapter 69, established
215 in section 2 of this act shall be submitted no later than December 31, 2027.